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# Expungement & Record-Sealing Starter

*How to find out whether your record can be cleared, and where to begin.*

A criminal record can follow you for years, but many people can clear or hide part of theirs and never find out they qualify. The rules vary enormously from state to state, and the words mean different things in different places. This starter explains the basics in plain language and points you to the free tools that show your state's actual rules. It will not clear your record, but it will tell you where to start.

*This is educational, not legal advice, and eligibility varies by state and by offense. Federal convictions generally cannot be sealed or expunged. Use the free resources in the sources line and, where you can, a licensed attorney or a legal-aid clinic.*

## The words, and why they differ

- Expungement: in many states, the record is erased or destroyed, treated as if it never happened. In some states the same word means something narrower.
- Sealing: the record still exists but is hidden from the public, though law enforcement and courts can still see it.
- Set-aside / dismissal / clean slate: other names states use for related relief. The same act can go by different names depending on where you are.

Because the labels vary, what matters is not the word but what your state actually allows for your specific record.

## The common preconditions

Most states require some version of all of these before you can clear a record:

- ☐ Your sentence is fully complete, including probation or parole.
- ☐ All fines, fees, and restitution are paid.
- ☐ A waiting period has passed with no new offenses.
- ☐ The offense is one your state allows to be cleared (many serious offenses are excluded).

## How to start, step by step

- ☐ Get your own criminal history record from your state repository, so you know exactly what is on it.
- ☐ Look up your state's rules using the free 50-state resources in the sources line below.
- ☐ Check whether your state has automatic clean slate clearing, which happens with no petition at all.
- ☐ For each record, note the offense, the disposition, and the date the sentence ended.
- ☐ Find your local legal-aid clinic or a periodic expungement clinic; many offer free help.

## Things worth knowing

- Many people who qualify never apply, simply because they did not know they could.
- Arrests and dismissed charges are usually the easiest records to clear.
- Be wary of any service charging large fees to clear a record; free and low-cost help often exists.
- A federal conviction is different: routine sealing is generally not available. Ask a lawyer about your narrow options.

## My records to look into

Offense, disposition, and date sentence ended, for each record:

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**Sources and further reading:** *Collateral Consequences Resource Center, 50-State Comparison: Expungement, Sealing & Other Record Relief* ([ccresourcecenter.org](http://ccresourcecenter.org)), and the *National Reentry Resource Center Clean Slate Clearinghouse* ([nationalreentryresourcecenter.org/cleanslate](http://nationalreentryresourcecenter.org/cleanslate)). Neither is legal advice.

*This workbook is educational and reflects lived and professional experience. It is not legal advice and does not create an attorney-client relationship. Laws and procedures vary by jurisdiction and change over time. For advice about your situation, consult a licensed attorney in your state.*

More free tools and guidance: [hub.newphysician.org/templates](http://hub.newphysician.org/templates) · [bustedbythefed.com](http://bustedbythefed.com) · [whitecollaracademy.com](http://whitecollaracademy.com)

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